



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing three judgments on Tuesday 11 June 2019 and 24 judgments and / or decisions on Thursday 13 June 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 11 June 2019

[Prizreni v. Albania \(application no. 29309/16\)](#)

The applicant, Fatos Prizreni, is an Albanian national who was born in 1963 and lives in Elbasan (Albania).

The case concerns the death and alleged ill-treatment of the applicant's brother in hospital and the alleged lack of an effective investigation.

In February 2011, the applicant's brother, Sh.P., was transferred from Lezhë detention facility to a hospital. The applicant went to visit his brother on 22 February 2011, but found that he had died that day. It appears from the hospital file that Sh.P. had been diagnosed with elephantiasis, morbid obesity and multi-organ insufficiency, and had been prescribed medication.

The authorities began to investigate the death on the day he passed away, carrying out an on-site examination and later questioning hospital doctors. The doctors stated that he had been treated like any other patient and given treatment in accordance with the rules. The applicant told investigators that during an earlier visit he had found his brother unconscious and tied to the bed with sheets.

A post-mortem forensic report found no trace of medication in Sh.P.'s blood, noted bruising on both forearms and gave the cause of death as acute cardio-respiratory insufficiency. It left the question of any negligent medical treatment to another forensic medical commission.

The Tirana prosecutor's office decided in April 2011 against bringing criminal proceedings, citing the forensic report and the fact that it had found no evidence of an offence. The applicant complained about that decision but his case was rejected at all levels, including the Constitutional Court in 2015. The courts found in particular that he did not have legal standing.

Relying on Article 2 (right to life) of the European Convention on Human Rights, the applicant complains that there was no effective investigation into his brother's death.

He also complains that his brother was treated in hospital in a way that was contrary to Article 3 (prohibition of torture and inhuman or degrading treatment). In particular, he alleges that he found his brother tied to his bed with sheets while unconscious, that the marks on his brother's wrists raised serious suspicions that he had been handcuffed while at the hospital, and that his brother did not receive proper medical treatment. He also raises a complaint under Article 13 (right to an effective remedy) in conjunction with Article 2 and Article 3.

[Ozdil and Others v. the Republic of Moldova \(no. 42305/18\)](#)

The applicants, Yasin Ozdil, Mujdat Celebi, Riza Dogan, Sedat Hasan Karacaoglu, and Mehmet Feridun Tufekci, are five Turkish nationals who were born in 1976, 1972, 1976, 1970, and 1976 respectively. They are currently detained in Turkey.

The case concerns the alleged disguised extradition of five Turkish nationals sought by the Turkish authorities for alleged ties with the Fethullah Gülen movement.

The applicants were secondary school teachers in a chain of schools in Moldova called Orizont. In connection with the attempted military coup of 15/16 July 2016 in Turkey, the Turkish ambassador to Moldova accused the Orizont schools of ties to the Gülen movement and accused the teachers in those schools of terrorism.

In March 2018 the principal of the Chişinău-based Orizont school was arrested and questioned by the Moldovan secret service concerning allegations of supporting terrorist organisations. In connection with the above events, in April 2018 all the applicants applied to the Moldovan Bureau for Migration and Asylum ("the BMA") for asylum. They sought to obtain refugee status in Moldova because they feared reprisals in their country of origin, Turkey, on the grounds of their political views. The applicants were informed in June 2018 by the prosecutor's office that there were no pending criminal investigations involving them.

In September 2018 seven teachers from the Orizont schools – among them the applicants – were arrested in the course of a joint operation conducted by the Moldovan and Turkish secret services. They were taken directly to Chişinău Airport, where a specially chartered aeroplane was waiting for them and took them immediately to Turkey. The applicants' families had no knowledge of their fate for several weeks.

Shortly afterwards their families received letters from the BMA containing decisions in which the applicants' applications for asylum were rejected and in which the applicants were banned from entering Moldovan territory for a period of five years and their expulsion under supervision from Moldova was ordered. The BMA concluded that the applicants fulfilled the legal requirements to be granted asylum in Moldova, but found nevertheless, on the basis of a secret note received from the Moldovan secret services, that they presented a threat to national security.

In September and October 2018 the applicants' representative, who had received powers of attorney from their wives, contested the BMA's decisions in court. However, their actions were dismissed on the grounds that the powers of attorney had not been signed by the applicants.

Relying on Article 5 § 1 (f) (right to liberty and security), Article 6 § 1 (right to a fair trial), Article 8 (right to respect for private and family life), and Article 1 of Protocol No. 7 (procedural safeguards relating to expulsion of aliens) to the European Convention, the applicants complain, in particular, that they had been unlawfully deprived of their liberty and extradited to Turkey.

Thursday 13 June 2019

[Koutsokostas v. Greece \(no. 64732/12\)](#)

The applicants, Georgios Koutsokostas and Andreas Koutsokostas, are Greek nationals who were born in 1945 and 1976 respectively and live in Pella (Greece).

The case concerns proceedings for the expropriation of land belonging to the applicants in the town of Pella. The applicants' complaint relates in particular to the national courts' refusal to examine their application for payment of compensation for the expropriation at the same time as assessing the final amount payable.

Relying in particular on Article 1 of Protocol No. 1 (protection of property), the applicants complain that they were required to make a further application to the appropriate courts for payment of the compensation.

Sh.D. and Others v. Greece, Austria, Croatia, Hungary, North Macedonia, Serbia and Slovenia (no. 14165/16)

The applicants are five Afghan nationals who entered Greece illegally as unaccompanied minors aged between 14 and 17 at the time of the events. They allege that they fled Afghanistan because they feared for their lives as members of the Ismaili religious minority.

The case concerns their living conditions in Greece.

In early 2016 they entered Greece illegally and were caught by the police. On 21 February 2016, orders were made for their deportation and they were given one month to leave Greek territory.

Some of them attempted to cross the border between Greece and North Macedonia but were stopped by the border guards. Sh.D. was arrested by the Greek police and placed in “protective custody” at Polykastro police station for 24 days. A.A., S.M., M.M. and A.B.M. were arrested on the island of Chios and their deportation was ordered; they subsequently crossed to the Greek mainland and made their way to Idomeni, a settlement on the border between Greece and North Macedonia.

For approximately one month they were accommodated at the makeshift camp in Idomeni. In March 2016, accompanied by their lawyer Ms Koutra, they were escorted to the Central Asylum Service in Athens to apply for asylum. In May 2016 they moved into a squatted hotel in the centre of Athens. In July 2016 S.M., M.M. and A.B.M. were taken into the Faros shelter for unaccompanied minors, a facility operating under the supervision of the Norwegian Embassy and the International Organization for Migration.

In August 2016 S.M. and M.M. were transferred to the Mellon special facility for unaccompanied minors, run by the Office of the United Nations High Commissioner for Refugees (UNHCR). In December 2016 M.M. was arrested by the police on account of his status as a minor and was placed in “protective custody” for eight days. A.A. hid under a lorry in an attempt to reach Italy but was arrested and likewise placed in “protective custody” in July 2016 at Igoumenitsa Port police station, and later, after a suicide attempt, at Filiata police station. S.M. and A.A. were granted refugee status in October 2016 and January 2017 respectively.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Sh.D. and A.A. complain about their living conditions at Polykastro and Filiata police stations, where they were held in “protective custody”. A.A., S.M., M.M. and A.B.M. complain about their living conditions at the camp in Idomeni.

Relying on Article 5 (right to liberty and security), three of the applicants argue that their placement in protective custody at the police stations in Polykastro, Filiata and Aghios Stefanos was not compatible with this provision of the Convention.

Relying on various other Articles of the Convention, the applicants state that their application has been brought against Greece and also Austria, Croatia, Hungary, North Macedonia, Serbia and Slovenia.

Marcello Viola v. Italy (no. 2) (no. 77633/16)

The applicant, Mr Marcello Viola, is an Italian national who was born in 1959 and is currently detained in Sulmona Prison (Italy). He was involved in a series of incidents between two rival Mafia clans from the mid-1980s until 1996. The case concerns his irreducible life sentence.

On 16 October 1995 the Palmi Assize Court sentenced Mr Viola to 15 years’ imprisonment for membership of a Mafia-type criminal organisation in connection with events occurring between 1990 and 1992. The Assize Court of Appeal upheld his conviction but reduced the sentence to 12 years’ imprisonment. The applicant did not appeal on points of law. In September 1999 the Palmi Assize Court sentenced Mr Viola to life imprisonment for separate offences linked to Mafia-type criminal activities, and also found him guilty of murder, abduction, false imprisonment resulting in the victim’s death and unlawful possession of firearms. An appeal on points of law by the applicant

was dismissed. On 12 December 2008 the Assize Court of Appeal reassessed the overall sentence as one of life imprisonment with daytime isolation for two years and two months.

Between 2000 and 2006 the applicant was placed under a special prison regime (section 41 *bis* (2) of Law no. 354 of 26 July 1975). In December 2005 the Ministry of Justice issued a decree ordering the extension of the regime for a further year. In an order of 14 March 2006 the sentence supervision court allowed an appeal by the applicant and discontinued the special regime.

The applicant subsequently applied for prison leave on two occasions. His first application was rejected in July 2011 by the post-sentencing judge, who pointed out that the applicant remained ineligible for prison leave as he was serving a sentence for membership of a Mafia-type criminal organisation and had not cooperated with the judicial authorities. On 29 November 2011 the sentence supervision court dismissed an appeal by the applicant, holding that it had not been established that he had broken off contact with the criminal organisation and that it did not appear from observation of his everyday behaviour that he had engaged in critical reflection on his criminal past. The second application for prison leave was rejected on the same grounds.

In March 2015 Mr Viola applied to the sentence supervision court for release on licence. In a decision of 26 May 2015 the court held that his application could not be granted, since release on licence was conditional on cooperation with the judicial authorities and the permanent severing of ties between the convicted person and Mafia circles. In a judgment of 22 March 2016 the Court of Cassation dismissed an appeal on points of law by the applicant.

Relying on Article 3 of the Convention (prohibition of inhuman or degrading treatment), the applicant complains that his life sentence is irreducible and affords him no prospect of release on licence. Relying on Articles 3 and 8 (right to respect for private and family life), he also complains that the prison regime is incompatible with the aim of prisoners' rehabilitation and social reintegration.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 11 June 2019

Name	Main application number
S.S. and B.Z. v. Russia	35332/17

Thursday 13 June 2019

Name	Main application number
Begović v. Croatia	35810/14
M.F. v. France	15794/17
Tanis v. Greece	21020/15
Baran v. Poland	29657/17
Bednarz v. Poland	76505/14
Bieńkowski v. Poland	15362/09
Jarmuż v. Poland	63696/12
Kuś v. Poland	16573/10
Orujov v. Poland	15114/17

Name	Main application number
Pogorzelec v. Poland	34811/15
Prawosławna Parafia pod Wezwaniem Świętego Archaniola Michała w Wysowej v. Poland	11748/13
Sus v. Poland	2827/13
Todorski v. Poland	5268/16
Wesołek v. Poland	65860/12
Wójcik and Matkowski v. Poland	72274/13
Woźniak and Others v. Poland	72453/12
Khasanbayev v. Russia	19488/16
Korobeynikov v. Russia	55670/17
Polufakin v. Russia	11316/10
Savelyev v. Russia	42982/08
Milić v. Serbia	62876/15

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.